

Tentative Rulings for August 6, 2026 Department PS2

**To request oral argument, you must notify Judicial Secretary
Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 644 5616**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2401267	DIAZ VS MAGEE	DEFENDANT, COUNTY OF RIVERSIDE'S MOTION TO COMPEL EXAMINATION OF PLAINTIFF

Tentative Ruling: Denied.

Plaintiff to provide notice pursuant to CCP 1019.5.

This is an employment action brought by Plaintiff Irma Lorena Diaz ("Plaintiff"), former Supervising Code Enforcement Officer, against her former employer, Defendant County of Riverside (the "County") and her former supervisor, Robert Magee ("Magee") (collectively, "Defendants"). On April 11, 2024, Plaintiff filed her operative First Amended Complaint ("FAC") against Defendants, alleging six causes of action: (1) FEHA discrimination; (2) FEHA harassment; (3) retaliation for requesting reasonable accommodation; (4) retaliation for opposition to discrimination and harassment; (5) failure to prevent discrimination and harassment; and (6) CFRA retaliation.

Plaintiff alleges that Defendants discriminated against her based on race, national origin, sex, and disability by demoting and isolating her, harassing and ridiculing her, unjustifiably scrutinizing, criticizing, disciplining, and warning her, and wrongfully constructively terminating her employment. (FAC ¶ 2.) Plaintiff further alleges that Defendants took these adverse actions in retaliation for her requests for reasonable accommodation, her request for and exercise of medical leave, and her opposition to practices prohibited under FEHA. (*Id.* at ¶ 3.) As a direct and proximate result of Defendants' conduct, Plaintiff alleges she has suffered and continues to suffer substantial emotional distress, including anxiety, depression, frustration, anger, humiliation, and fear, as well as economic losses. (*Id.* at ¶ 49.)

On February 18, 2026, Defendants' counsel sent Plaintiff's counsel a meet and confer letter proposing either (1) that Plaintiff submit to a voluntary mental examination, or (2) that the parties enter into a stipulation pursuant to CCP § 2032.320(c) that Plaintiff was not making a claim for mental or emotional distress over and above that usually associated with the physical injuries alleged. (Bhambra Decl. ¶¶ 7, 12, Ex. B.) Plaintiff's counsel responded that Plaintiff was amenable to reviewing a proposed stipulation, and on March 24, 2026, Defendants' counsel circulated a draft stipulation. (*Id.* at ¶¶ 8, 13, Ex. C.) Defendants' counsel followed up on April 14, April 30, and June 12, 2026, regarding Plaintiff's edits to the draft stipulation. (*Id.* at ¶ 8.)

On June 18, 2026, Plaintiff's counsel provided a revised stipulation requesting that the examiner's report be produced within seven days of the examination (rather than the thirty days prescribed by CCP § 2032.610(b)) and that the examination be conducted virtually or within 75 miles of Plaintiff's residence. (*Id.* at ¶ 9.) On June 24, 2026, defense counsel advised that Dr. Saint Martin would not agree to a seven-day report turnaround and preferred to conduct the examination in person in San Bernardino. (*Id.* at ¶¶ 9, 14, Ex. D.) Although Plaintiff agreed to the in-person format and San Bernardino location, she would not agree to the statutory 30-day timeframe for production of the report. (*Id.*) On June 25,

2026, Defendants' counsel advised that Defendants intended to file a motion to compel the mental examination. (*Id.*)

On July 10, 2026, Defendants filed an ex parte application to continue trial, which the Court denied on July 14, 2026. Trial is currently set for September 18, 2026.

In the instant motion, the County now moves for an order compelling Plaintiff to submit to a psychological examination by Manuel Saint Martin, M.D., J.D. on November 23, 2026, arguing that good cause exists because Plaintiff has placed her mental condition in controversy by alleging ongoing emotional distress, including anxiety, depression, frustration, anger, humiliation, and fear, and by seeking treatment and medication for depression and workplace stress from Dr. Albert Anderson and Nurse Practitioner Job Lopez. The County contends that under *Vinson v. Superior Court*, (1987) 43 Cal.3d 833, where a plaintiff alleges ongoing emotional distress and has been diagnosed with a mental condition, defendants must be allowed to investigate the continued existence and severity of the alleged damages. The County further argues that its request that Dr. Saint Martin produce his report within the 30-day period authorized by CCP § 2032.610(b), rather than the seven days demanded by Plaintiff, is reasonable and consistent with the statute, and that the County satisfied the meet and confer requirement of section 2032.310(b).

In opposition, Plaintiff argues that the County has failed to establish good cause and has failed to meet the specificity requirements of CCP § 2032.310(b). Plaintiff argues that the County has known since service of the initial complaint on March 12, 2024, that Plaintiff's mental state was in controversy, yet inexplicably waited until July 16, 2026—two months before the September 18, 2026 trial date, and only after its ex parte application to continue trial was denied—to seek this examination, suggesting the County's true motive is to force a trial continuance. Plaintiff further contends that the proposed examination date of November 23, 2026, falls two months after trial, rendering the motion and proposed order uncertain as to time under section 2032.310(b). Finally, Plaintiff argues that the County's motion fails to describe the proposed tests and procedures "fully, in detail" and "by name" as required by *Carpenter v. Sup. Ct.* (2006) 141 Cal.App.4th 249, instead referring to vague categories such as "discussing Plaintiff's view of her own personality and symptoms," a "brief cognitive evaluation," and "symptom inventories that depend on Plaintiff's symptoms," and that the proposed order omits the specifically named tests altogether.

Mental Examination

A motion for mental examination under CCP § 2032.310 must be accompanied by a meet and confer declaration under section 2016.040. (CCP § 2032.310(b).) Section 2016.040 requires that a meet and confer declaration "state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (CCP § 2016.040(a).)

Here, the Bhambra Declaration reflects only written meet and confer efforts—a February 18, 2026 meet and confer letter, a draft stipulation circulated on March 24, 2026, email follow-ups on April 14, April 30, and June 12, 2026, and further email exchanges from June 18–25, 2026, regarding the terms of the examination. The declaration does not state

facts showing that counsel conferred in person, by telephone, or by videoconference as required by section 2016.040. Accordingly, the County has failed to satisfy its meet and confer requirement of section 2032.310(b) and 2016.040.

Additionally, the motions also fail on the merits.

A court order is required to obtain a party's mental examination. (CCP § 2032.310(a).) Such an order may be made only after notice and hearing, and for "good cause shown." (CCP §§ 2032.310(c), 2032.320(a).) The motion must state the time, place, identity and specialty of the examiner, and the "manner, conditions, scope and nature of the examination." (CCP § 2032.310(b).) "An order granting a physical or mental examination shall specify the person or persons who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination." (CCP § 2032.320(d).) "[T]he court in its order must set forth certain details of the examination: 'An order granting a physical or mental examination *shall specify the person or persons who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures*, conditions, scope and nature of the examination.'" (*Carpenter, supra*, 141 Cal.App.4th at 259 [internal quotation omitted] [italic in original].) "The word 'specify' means to speak of fully or in detail. [Citation.] . . . The way to describe these 'diagnostic tests and procedures'—*fully and in detail*—is to list them by name." (*Id.* at 260 [internal citation omitted] [italics in original].)

The examination will be limited to whatever condition is "in controversy" in the action. (CCP § 2032.020(a).) This means that the specific injury or subject of the litigation must be directly invoked by the examination. (*See Roberts v. Sup. Ct.* (1973) 9 Cal.3d 330, 337.) By alleging a causal link between the emotional distress and the defendant's conduct, a plaintiff "implicitly claims it was not caused by a preexisting mental condition, thereby raising the question of alternative sources for the distress." (*Vinson, supra*, 43 Cal.3d at 840.) "While a plaintiff may place his mental state in controversy by a general allegation of severe emotional distress, the opposing party may not require him to undergo psychiatric testing solely on the basis of speculation that something of interest may surface." (*Id.*)

Here, the County's motion does not specify a viable date and time for the examination. In its motion, the County proposes that Dr. Saint Martin examine Plaintiff on November 23, 2026, at 9:00 a.m. However, trial is set for September 18, 2026, more than two months before the proposed examination date. Moreover, the County requests that Dr. Saint Martin be given thirty days after the examination to produce his report, meaning the report would not be issued until late December 2026, roughly three months after trial. At the time the County filed this motion on July 9, 2026, it was aware that its proposed examination date fell after the trial date. Indeed, the County sought ex parte relief to continue trial precisely because the proposed examination and hearing dates fell after trial, but the Court denied that application on July 14, 2026, finding "Good Cause not shown," and noting that trial had already been continued in December 2025. (*See Minute Order* dated July 14, 2026.) Section 2032.310(b) mandates that a motion for examination "specify the time" of the examination. Setting the examination after the operative trial date, particularly after the County's ex parte application to continue trial was denied, does not satisfy this requirement, and renders the proposed examination date uncertain as to time.

Second, the County does not specify all of the tests and procedures that will be conducted during the examination. The Bhambra Declaration states that the evaluation will include “symptom inventories that depend on Plaintiff’s symptoms, which would be chosen from depression, anxiety, and stress inventories,” and that Dr. Saint Martin will administer “some or all” of the following psychological tests: the MMPI-3, the MCMI-4, the PAI, and the Structured Interview of Reported Symptoms. (Bhambra Decl. ¶ 10.) The phrase “some or all” introduces ambiguity as to which tests will actually be administered, and the unnamed “symptom inventories” are not identified by name as required by *Carpenter*. The description also references a “brief cognitive evaluation” without specifying the instruments or procedures that comprise it. (*Id.*)

Finally, the County’s proposed order omits the specifically named tests altogether, describing the evaluation only as consisting of “(a) discussing Plaintiff’s view of her own personality and symptoms; (b) discussing the underlying events; (c) completing a brief cognitive evaluation to judge Plaintiff’s ability to complete written measures and her capacity for memory; (d) completing symptom inventories that depend on Plaintiff’s symptoms, which would be chosen from child depression, anxiety, and stress inventories; [and] (e) discussing the inventories with Plaintiff.” (See Proposed Or. 2.) The MMPI-3, MCMI-4, PAI, and Structured Interview of Reported Symptoms referenced in the Bhambra Declaration do not appear anywhere in the proposed order, rendering the order even less specific than the motion itself. As Plaintiff argues, these descriptions fall short of the statutory command that the motion and order describe the diagnostic tests and procedures “fully and in detail” by listing them by name, as required by *Carpenter*.
DENIED

2.

CASE #	CASE NAME	HEARING NAME
CVPS2501793	PETRILLA, A MINOR VS DESERT SANDS UNIFIED SCHOOL DISTRICT	MOTION FOR LEAVE TO AMEND COMPLAINT OF KAYDENCE PETRILLA, A MINOR, BY AND THROUGH HER MOTHER AND GUARDIAN AD LITEM BY KAYDENCE PETRILLA, A MINOR, STEPHANIE PETRILLA

Tentative Ruling: Granted.

No opposition filed.

C.C.P. §473 authorizes the court to grant leave to amend any pleading “in furtherance of justice, and on such terms as may be proper.” A motion for relief under CCP § 473 is addressed to the sound discretion of the trial court, and the exercise of that discretion will not be disturbed on appeal unless there is a clear showing that it was abused. (*Carroll v. Abbott Laboratories, Inc.* (1982) 32 Cal.3d 892, 897-898; *Record v. Reason* (1999) 73 Cal.App.4th 472, 486.)3.1324(b).

California courts have developed “a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.” (*Dunzweiler v.*

Superior Court (1968) 267 Cal.App.2d 569, 576.) Thus, if a motion is timely and the amended pleading will not prejudice the opposing party, it is error not to allow leave to amend. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048; *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530 [“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion”].)

While courts will occasionally deny leave to amend when the motion is brought on the eve of trial (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487-88; *Nelson v. Specialty Records, Inc.* (1970) 11 Cal.App.3d 126, 139-40), “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co.*, 213 Cal.App.3d 1045, 1048; see also *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Prejudice can occur when an amendment “open[s] up an entirely new field of inquiry without any satisfactory explanation as to why this major change in point of attack had not been made long before trial.” (*Magpali*, 48 Cal.App.4th 471, 487) or when allowing amendment would result in a delay of trial, loss of critical evidence, or added preparation expenses. (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.) But the fact that the amendment involves a change in legal theory, or will cause a more favorable result for the plaintiff, is not prejudice. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.)

A motion for leave to amend must identify by page, paragraph and line number any additions to and deletions from the prior pleading. (C.R.C. rule 3.1324(a)(2)-(3).) Further, the motion must be accompanied by a declaration and must specify: (1) the effect of the amendment; (2) why the amendment is proper and necessary; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the amendment was not made earlier. (C.R.C. rule 3.1324(b)(1)-(4).)

Here, Plaintiff’s motion meets the requirements of C.R.C. 3.1324 for amended pleadings. Plaintiff is ordered to file their proposed 1st Amended Complaint within 5 days of this order becoming final.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2506387	GUERRERO VS HYUNDAI MOTOR AMERICA	MOTION TO COMPEL COMPLIANCE WITH CCP 871.26 BY HYUNDAI MOTOR AMERICA

Tentative Ruling: No tentative ruling. Hearing will be conducted on Thursday August 6, 2026 at 8:30 a.m. in Department PS2.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2506387	GUERRERO VS HYUNDAI MOTOR AMERICA	MOTION TO COMPEL COMPLIANCE WITH CCP 871.26 BY HYUNDAI MOTOR AMERICA

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5.

CASE #	CASE NAME	HEARING NAME
CVPS2506930	DIAMANTIDES-ABEL VS DIAMANTIDES ABEL	MOTION TO STRIKE COMPLAINT ON COMPLAINT OF ARGY DIAMANTIDES-ABEL BY JAYLYN ORTEGA

Tentative Ruling: Denied.

Court to provide notice pursuant to CCP 1019.5.

This is a quiet title action. Plaintiff Argy Diamantides Abel (“Plaintiff”) alleges that since 2014, she has been the sole owner of a residential property in Palm Desert (“Subject Property”). Plaintiff asserts that she temporarily transferred title to the Subject Property to her three sons, including Defendant Zacharias Diamantides Abel (“Zacharias”) to protect it from her siblings who were challenging their mother’s Trust. In 2024, Zacharias and his girlfriend, Defendant Jaylin Ortega (“Ortega”) (collectively with Zacharias “Defendants”) briefly moved into the Subject Property with Plaintiff’s consent. Plaintiff alleges that Defendants caused damage to the carpets and failed to tend to the landscaping, leading to a public nuisance citation. On June 1, 2025, Defendants began living rent-free in the Subject Property without Plaintiff’s knowledge or consent. When Plaintiff learned of the occupancy, she went to the Subject Property, but Defendants had changed the garage and front door codes. Sheriff’s deputies were called and ordered to Plaintiff to leave the premises since Zacharias, rather than Plaintiff, was a titled owner.

On September 22, 2025, Plaintiff filed the Complaint. She asserts three causes of action for: (1) Quiet Title; (2) Financial Elder Abuse; and (3) Rescission of Deed of Trust.

The Proofs of Service, filed on November 21, 2025, indicate that on both Defendants were personally served at the Subject Property on November 2, 2026. On December 10, 2026, default was entered against both Defendants. On January 26, 2026, both Defendants filed motion to set aside the default, which were granted on May 14, 2026. In so granting, the Court ordered Ortega to pay sanctions in the amount of \$1,000.00 and Zacharias to pay sanctions in the amount of \$500.00 within 30 days of the Order.

Zacharias and Ortega filed separate Motions to Modify the Interlocutory Order to Strike Financial Condition as a Condition of Relief (“Motions”) requesting that the sanctions be stricken from the May 14 Orders. Defendants argue that they are indigent and cannot pay the sanctions. Defendants argue that the sanctions will prevent them from defending the action in violation of their due process rights.

Plaintiff argues that Defendants have not produced sufficient evidence showing that they are indigent. Plaintiff argues that Defendants' assertions that all their income is used to pay for basic necessities, including rent, lacks credibility since they are living rent-free at the Subject Property. Plaintiff argues that the present Motions constitute improper motions for reconsideration.

Motion for Reconsideration:

As Plaintiff correctly notes, the present Motions are essentially motions for reconsideration of the orders granting relief from default since there is no other means to apply for reconsideration of any order unless made according to CCP § 1008.(CCP § 1008(e); *Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal. 4th 830, 840 (“*Even Zohar*”).) Pursuant to CCP §1008(a), when an application for an order has been made to a judge or to a court, and refused in whole or in part, granted, or granted conditionally, or on any terms, any party affected by the order, within 10 days of service upon the party of written notice of entry of the order and based upon new or different facts, circumstances or law, make application to the same judge or court to reconsider the matter and modify, amend, or revoke the order. “[T]he party seeking reconsideration must provide not only new evidence but also a satisfactory explanation for the failure to produce that evidence at an earlier time.” (*Mink v. Superior Court* (1992) 2 Cal. App. 4th 1338, 1342.) Section 1008 applies to reconsideration of an order granting or denying relief under CCP § 473(b). (*Even Zohar, supra*, 61 Cal. 4th at 840-841.)

Here, the Motions are untimely. As stated, a motion for reconsideration under section 1008 must be made within 10 days of service of written notice of entry of the order. The order was issued on May 14, 2026 and mailed to all parties on the same day. (See Cert. of Mailing.) The Motions were not filed until June 12, 2026. Moreover, Defendants have not produced any evidence that could not have been presented at hearing on the Motions to Set Aside Default. In their fee waiver requests, both Defendants stated that they receive food stamps and Medi-Cal. Neither provided any information regarding gross household income nor indicated that their income was less than the amounts listed in Section 5(b). This information was previously available. Defendants have not provided a satisfactory explanation as to why the evidence regarding their financial situation was not produced earlier. Thus, because Defendants have not timely moved for reconsideration or provide new or different facts, circumstances or law to justify reconsideration, the Motions must be denied.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2506930	DIAMANTIDES-ABEL VS DIAMANTIDES ABEL	HEARING RE: MOTION TO STRIKE COMPLAINT OF ARGY DIAMANTIDES-ABEL BY ZACHARIAS DIAMANTIDES ABEL

Tentative Ruling: Denied.

Court to provide notice pursuant to CCP 1019.5.

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